

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
MESSIAH WATSON,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER BAYKAL OF
THE 44TH PRECINCT, AND "JOHN DOES 1-9",
PERSON EMPLOYED BY THE CITY OF NEW
YORK,Defendants.

x

SUMMONS

:

Index No.: _____

:

Date Filed: _____

:

Plaintiff designates

:

Bronx County
as the place of trial

:

The Basis of Venue is
CPLR § 504(3)

x

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
July 2, 2019


 Grace Guo, Esq.
 LEBEDIN KOFMAN LLP
 Attorneys for Plaintiff
 MESSIAH WATSON
 26 Broadway, 27th Floor
 New York, New York 10004
 (212) 500-3273
Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2018PI022139, 100 Church Street, New York, NY 10007
 NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10038
 POLICE OFFICER BAYKAL, 44TH PRECINCT, 2 East 169th Street, Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- x
MESSIAH WATSON,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BAYKAL OF THE 44TH PRECINCT, AND "JOHN
DOES 1-9", PERSON EMPLOYED BY THE CITY
OF NEW YORK,Defendants.
----- x**VERIFIED COMPLAINT**

Index No.: _____

Date Filed: _____

MESSIAH WATSON (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER BAYKAL OF THE 44TH PRECINCT, AND "JOHN DOES 1-9", PERSON EMPLOYED BY THE CITY OF NEW YORK (hereinafter collectively the "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of the County, City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the "City") was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, Defendant New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant City operated, controlled and managed Defendant NYPD.

6. At all relevant times, Defendant Police Officer Baykal of the 44th Precinct (hereinafter “P.O. Baykal”) was an officer, agent, and/or employee of Defendant City.

7. At all relevant times, the names of Defendants “John Does 1-9” (hereinafter the “Officers”) are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the arrest of Plaintiff and violation of Plaintiff’s rights, whose names are presently unknown to Plaintiff.

8. At all relevant times, Defendants P.O. Baykal and Officers were acting within the scope of their employment as officers, agents, employees, and / or contractors of Defendant City.

9. At all relevant times, Defendants P.O. Baykal and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and / or contractors of Defendant City.

10. At all relevant times, Defendants were involved in violating Plaintiff’s rights, and individuals who acted in concert with them to do so, acted or failed to act, as alleged herein, toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules and / or usage of the State and City of New York, and within the scope of their employment.

11. Defendants P.O. Baykal and Officers are sued herein in both their individual and official capacities.

FACTS

12. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the

sources thereof are documents prepared in connection with the arrest of Plaintiff, and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

13. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Sections 50-e and 50-i on or about July 25, 2018. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

14. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

15. A General Municipal Law Section 50-h hearing was held on October 2, 2018.

16. This action is being commenced within one year of the dates on which all claims accrued.

17. Plaintiff has complied with all conditions precedent to maintaining this action.

18. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Incident of May 1, 2018

19. On or about May 1, 2018, at or near 3339 Park Avenue, in the County of Bronx, City and State of New York at approximately 3:00 p.m., Plaintiff was wrongfully tased and attacked/assaulted by Defendants P.O. Baykal and Officers to the point that Plaintiff lost consciousness.

20. At the time of the subject arrest, Plaintiff did not pose an immediate threat to the safety of Defendants P.O. Baykal and Officers or others.

21. At or near the time and place of the Arrest, without necessity or justification, Defendants P.O. Baykal and Officers did intentionally exert improper, significant and excessive physical force against Plaintiff, and / or the threat of physical force in restraining Plaintiff without necessity or justification, which caused Plaintiff to sustain injuries and losses.

22. At or near the time and place of the Arrest, officers, agents, employees and / or contractors of Defendant City witnessed Defendants P.O. Baykal and Officers exert excessive force against Plaintiff and did not intervene, though they had the realistic opportunity to do so.

23. Defendants did not commence any action against Plaintiff.

24. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to the rights of Plaintiff.

25. The acts of Defendants prior to and during the course of the the Arrest of Plaintiff were the direct result of the failure of Defendant City to properly hire, train, supervise, monitor and discipline its officers, agents, employees and / or contractors.

26. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of policies, practices and customs developed, implemented, enforced, encouraged, sanctioned or tolerated by Defendant City.

27. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical, and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

28. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

STATE CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
ASSAULT AND BATTERY

29. The allegations set forth in paragraphs “1” through “28” inclusive are incorporated herein as if fully set forth.

30. The threat of physical force in restraining Plaintiff without necessity or justification during the arrest constituted an assault of Plaintiff.

31. The exertion of improper, significant and excessive physical force against Plaintiff during the Arrest constituted a battery of Plaintiff.

32. Defendants P.O. Baykal and Officers, acting within the scope of their employment, intended to make or intended to threaten to make offensive bodily contact with Plaintiff.

33. Defendants P.O. Baykal and Officers knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute an assault of Plaintiff.

34. Defendants P.O. Baykal and Officers knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute a battery of Plaintiff.

35. Plaintiff was aware of the offensive bodily contact and Plaintiff did not consent or acquiesce to it.

36. Defendant City is responsible and liable for the acts of their employees, officers, agents, and / or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

37. As a direct and proximate cause of the assault and battery, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

38. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT / INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

39. The allegations set forth in paragraphs "1" through "38" inclusive are incorporated herein as if fully set forth.

40. Defendants P.O. Baykal and Officers engaged in extreme and outrageous conduct throughout the course of the Arrest of Plaintiff.

41. Defendants P.O. Baykal and Officers caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

42. Defendants P.O. Baykal and Officers knew, or should have known, that the extreme and outrageous conduct engaged in would result in injury to Plaintiff.

43. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

44. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or disregard of a substantial probability of causing severe emotional distress to Plaintiff.

45. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress which had a disabling effect.

46. Defendant City is responsible and liable for the acts of their employees, officers, agents, and / or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

47. As a direct and proximate cause of Defendants' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

48. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

49. The allegations set forth in paragraphs "1" through "48" inclusive are incorporated herein as if fully set forth.

50. Defendant City failed to exercise reasonable care in hiring, training, retaining and supervising its employees, officers, agents, and / or contractors, thereby breaching its duty to Plaintiff as well as to the public, to exercise reasonable care in the hiring, training, retaining, and supervising employees.

50. Defendant City was aware of and should have known of the propensity of Defendants P.O. Baykal and Officers to commit injurious acts.

51. Defendant City was negligent in failing to properly train and supervise its employees, more specifically Defendants P.O. Baykal and Officers.

52. Defendant City is responsible and liable for the acts of their employees, officers, agents, and / or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

53. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

54. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE / GROSS NEGLIGENCE

55. The allegations set forth in paragraphs "1" through "54" inclusive are incorporated herein as if fully set forth.

56. Defendants' acts and / or omissions in causing the aforesaid assault and battery of Plaintiff, negligent hiring, retention, training and supervision of its employees, officers, agents, and / or contractors, and negligent infliction of emotional distress were in breach of the duty of due care owed to Plaintiff.

57. Defendant City is responsible and liable for the acts of their employees, officers, agents, and / or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

58. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused

to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

59. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY FOR MUNICIPAL LIABILITY "MONELL" CLAIM

60. The allegations set forth in paragraphs "1" through "59" inclusive are incorporated herein as if fully set forth.

61. Defendants P.O. Baykal and Officers, individually and collectively, within the scope of their employment and authority and under color of state law, engaged in conduct which constituted customs, policies, procedures, rules or usages of the City and / or the NYPD and which were in violation of the rights of Plaintiff as secured by the United States Constitution.

62. The aforesaid customs, policies, procedures, rules or usages included but were not limited to: failure to properly investigate before effecting an arrest; utilizing unnecessary and excessive force; failure to ensure that use of force by police officers is properly reported and investigated; failure to appropriately discipline police officers who utilize unnecessary and excessive force, as well as those who supervise such officers; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; and failure to intervene when employees, officers, agents, and / or contractors violate well-established statutory and constitutional rights.

63. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject incident and Arrest rendering the City liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978), and under 42 U.S.C. § 1983.

64. The aforesaid conduct was consistent with the institutionalized practices of Defendant NYPD which were known and previously sanctioned by Defendant City.

65. Despite knowledge of the institutionalized practices of Defendant NYPD, Defendant City took no effective actions to end or prevent such practices.

66. Defendant City had prior notice of the injurious actions and practices of Defendants P.O. Baykal and Officers but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

67. Defendant City had prior notice that Defendants P.O. Baykal and Officers had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, and Departmental policy, other applicable laws, and federal and state statutory and constitutional protections, but took no effective actions to ensure that the aforesaid Defendants were provided with adequate or appropriate training.

68. Defendant City authorized, tolerated and ratified the misconduct of employees, officers, agents, and / or contractors, and of Defendants P.O. Baykal and Officers, specifically, by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, and agents; and failing to establish and maintain a meaningful system for responding to complaints of misconduct, all of which constitute deliberate indifference by Defendant City to Plaintiff's rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

69. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

70. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant City liable to Plaintiff for punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS
FOR VIOLATION OF PLAINTIFF'S STATUTORY
AND CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983

71. The allegations set forth in paragraphs "1" through "70" inclusive are incorporated herein as if fully set forth.

72. As a direct result of the acts, omissions, and policies of Defendant City, Defendants P.O. Baykal and Officers acting under color of State Law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of his rights, privileges, and immunities guaranteed under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution and 42 U.S.C. § 1983.

73. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from the use of unnecessary and excessive force against his person;
- d. Freedom from unreasonable search and seizure;
- e. Freedom from retaliation for protected speech;
- f. Freedom from state created danger; and
- g. Freedom from loss of liberty.

74. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

75. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York common law to be free from false arrest and imprisonment, assault and battery, intentional infliction of emotional distress, and other injuries.

76. As a direct and proximate cause of Defendants' violations of Plaintiff's statutory and constitutional rights protected under 42 U.S.C. § 1983, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

77. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages, and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

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WHEREFORE, Plaintiff demands judgment against CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER BAYKAL OF THE 44TH PRECINCT, AND “JOHN DOES 1-9”, PERSON EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdictional limits of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
July 2, 2019



Grace Guo, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
MESSIAH WATSON
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
July 2, 2019



Grace Guo, Esq.